

ORIGINAL

(S E R V E D)
(June 19, 2000)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

June 19, 2000

DOCKET NO. 00-04

AL KOGAN d/b/a GALAWAY INTERNATIONAL

v.

**WORLD EXPRESS SHIPPING, TRANSPORTATION AND
FORWARDING SERVICES, INC. d/b/a W.E.S.T.
FORWARDING SERVICES (FMC LIC. #3118-R)**

DISCOVERY SCHEDULE APPROVED AND ADOPTED

The parties have submitted a proposed schedule that provides for answers to interrogatories and production requests and for the taking of depositions of eight persons, of whom three are represented to be parties (Kogan, DeKeyser, and Krzeminski) and two, experts (Janet&1, Bradarich). As indicated in my previous ruling served June 5, 2000, unless non-party witnesses appear voluntarily, it may be necessary for counsel to serve subpoenas on such persons who are not officers, managing agents, or directors of the corporate respondent. As also indicated in my previous ruling,

when all discovery is completed a further conference will be held to discuss the future course of the proceeding, including the possibility of appointing a mediator or submitting summary-judgment motions. After the last of the depositions is taken, i.e., after July 27, 2000, under the proposed schedule, I expect counsel to advise me as to whether more depositions are contemplated and whether the time would be ripe for the conference.

As proposed by the parties and as adopted hereby, subject to whatever changes might be necessary due to unforeseen future events, the following schedule will apply:

July 13, 2000 - Responses to respondent WEST's interrogatories and requests for production of documents that were served on complainant Kogan.

Depositions

<u>Deponent</u>	<u>Date</u>	<u>Time</u>	<u>Place</u>
Peter Janetski	7/23/00	1:00 p.m.	Law Offices of Jonathan Clark Green, P.C., Chicago
Al Kogan	7/24/00	9:00 a.m.	Sandler, Travis & Rosenberg, P.A., Chicago
Faith Krzeminski	7/24/00	1:00 p.m.	Law Offices of Jonathan Clark Green, P.C., Chicago
Jean DeKeyser	7/25/00	9:00 a.m.	Law Offices of Jonathan Clark Green, P.C., Chicago
Jeff Victor	7/25/00	1:00 p.m.	Law Offices of Jonathan Clark Green, P.C., Chicago
Kim Kamphouse	7/26/00	9:00 a.m.	Law Offices of Jonathan Clark Green, P.C., Chicago

Ethan Meeks 7/26/00 1 00 p m. Law Offices of Jonathan Clark
Green, P C , Chicago

Joe Bradarich 7/27/00 9 00 a.m. Law Offices of Jonathan Clark
Green, P C , Chicago

Each party may depose further expert witnesses if the need arises

The parties to complete discovery in this matter on or before October 2, 2000.


Norman D Kline
Administrative Law Judge